

2:00 PM

LINE: 8

25-CLJ-00513

WELLS FARGO BANK, N.A. VS. SIAOSI E FOLAU, JR

**WELLS FARGO BANK, N.A.
SIAOSI E FOLAU**

HARLAN M. REESE

PLAINTIFF WELLS FARGO BANK, N.A.'S MOTION FOR JUDGMENT ON THE PLEADINGS AND OF NON-APPEARANCE

TENTATIVE RULING:

Plaintiff Wells Fargo Bank, N.A.'s motion for judgment on the pleadings is **DENIED**. Plaintiff's request for judicial notice of Defendant's answer, the motion and order concerning requests for admission, and other identified filings in this action is **GRANTED** as to their existence and contents, not as blanket proof of all factual assertions appearing in them. (Evid. Code, § 452, subd. (d).)

LEGAL STANDARD

A plaintiff may obtain judgment on the pleadings when the complaint alleges facts sufficient to constitute a cause of action and the answer does not allege facts sufficient to constitute a defense. The grounds must appear on the face of the challenged pleading or in properly noticeable matters. (Code Civ. Proc., § 438, subds. (c)(1)(A), (d).) A plaintiff's motion ordinarily fails if the answer places a material element in issue. Deemed admissions may conclusively establish the particular facts admitted, notwithstanding inconsistent pleading denials. (Code Civ. Proc., § 2033.410, subd. (a).)

ANALYSIS

Defendant's deemed admissions establish the existence of an account ending in 5327, receipt of monthly statements requesting minimum payments, an account balance of \$11,550.95 as of January 16, 2025, nonpayment of any amount thereafter, and an admitted debt of at least \$11,550.95. (Request for judicial notice, Ex. B, request Nos. 1–6; order dated January 29, 2026.) They are significant admissions, but on the facts summarized in this motion they do not admit a particular payment due before January 16, 2025, nonpayment when due under the identified contractual terms, or another specific breach of the pleaded written contract. The Complaint alleges that Defendant failed to pay as agreed, but Defendant's Answer denies breach. The Court cannot enter judgment on a contested breach-of-contract element by treating all facts in the moving Complaint as admitted. (See Code Civ. Proc., § 438, subd. (c)(1)(A); *Reichert v. General Insurance Co.* (1968) 68 Cal.2d 822, 830.) The denial is without prejudice to a procedurally proper motion or trial supported by the contract, statements, admissions, and evidence establishing all required elements.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

**UD LAW AND MOTION CALENDAR
THURSDAY, SEPTEMBER 24, 2026**

2:00 PM

LINE: 1

26-UDL-00208

BRIDGE PROPERTY MANAGEMENT COMPANY VS. ARMANDO VEGA PACHECO, ET AL

**BRIDGE PROPERTY MANAGEMENT COMPANY
ARMANDO VEGA PACHECO**

**MERCEDES A. GAVIN
PRO SE**

PLAINTIFF BRIDGE PROPERTY MANAGEMENT COMPANY'S MOTION FOR SUMMARY JUDGMENT

TENTATIVE RULING:

For the reasons stated below, Plaintiff Bridge Property Management Company's motion for summary judgment is **DENIED WITHOUT PREJUDICE** on the present evidentiary showing. Defendants may present oral opposition at the hearing. (Code Civ. Proc., § 1170.7; Cal. Rules of Court, rule 3.1351(b).) The Court does not enter judgment for possession, forfeiture, damages, or costs on this motion.

BACKGROUND

Per allegations, Plaintiff is the property manager and agent of the owner of the premises at issue, at 500 King Drive Unit #608, Daly City, CA 94015 (the "Premises"). (Complaint, ¶ 2.) Defendants became tenants of the Premises from October 9, 2025, to October 8, 2026, pursuant to a written Residential Lease Agreement (the "Lease"). (*Id.*, ¶ 3, & Exh. 1; Jost Decl., ¶ 3, & Exh. 1.) Exhibit 1 to the Complaint includes an "Early Lease Termination Addendum" and also shows Plaintiff's "General House Rules and Regulations." (*Id.*, ¶ 3, & Exh. 1.) Plaintiff served a Notice to Quit (the "Notice") on January 23, 2026. (*Id.*, ¶ 6, & Exh. 2.) The period stated in the Notice expired on January 28, 2026, with Defendants having failed to comply with the requirements of the Notice, and remaining in possession of the Premises. (*Id.*, ¶¶ 7-9 & 11, & Exh. 2; Jost Decl., ¶¶ 4-5.) *Inter alia*, the Complaint seeks possession and forfeiture of the Lease, damages of \$108.00 per day from February 1, 2026, until the date of entry of judgment, and costs of suit. However, the Motion "waives the fair rental value of the premises." (Jost Decl., ¶ 6.)

The Court has granted Plaintiff's motion to compel, holding *inter alia* that, "The matters set forth in Plaintiff's Request for Admissions, Set One, are hereby **DEEMED ADMITTED** against Defendants." (Order, filed on June 16, 2026.) The following four Requests for Admission ("RFA") thus were deemed to have been admitted:

1. On January 23, 2026, Plaintiff Bridge Property Management Company caused Defendant to be served a 3-Day Notice to Quit by posting a copy of the notice to Defendant at the premises and by mailing a copy to Defendant at the premises.

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2. On January 28, 2026, the period stated in the 3-Day Notice to Quit expired at the end of the day.
 3. On January 1, 2026, at approximately 3:30 a.m., Armando Vega Pacheco caused another resident to sustain physically [sic] injuries, such as a dislocated left shoulder and dislocated right elbow, on the Property and caused the resident to be taken to the hospital.
 4. On January 1, 2026, at approximately 3:30 a.m., Armando Vega Pacheco physically assaulted another resident on the Property.

(Gavin Decl., ¶ 2, & Exh. 1.)

Plaintiff brings the Motion pursuant to Code of Civil Procedure section 1170.7.

LEGAL STANDARD

A plaintiff moving for summary judgment must establish every element of the unlawful-detainer claim and the absence of a triable defense; a failure to oppose does not eliminate that initial burden. (Code Civ. Proc., §§ 437c, subds. (c), (p)(1), 1170.7.)

ANALYSIS

Burden and admissions

The June 16, 2026 order deeming four requests for admission admitted establishes the admitted matters against the responding parties within the order's scope, including an assault by Armando Vega Pacheco, the stated January 23 service by posting and mailing, and the stated expiration date. The order does not establish facts beyond the precise admissions, including compliance with every statutory prerequisite for substituted notice, the lease provision or statutory ground authorizing termination as to each named defendant, or a basis for forfeiture against a tenant whose misconduct is not admitted. (See Code Civ. Proc., §§ 1161, 1162, 2033.410, subd. (a).)

Material gaps

The moving papers do not sufficiently establish the statutory ground of termination, the applicable lease or house-rule provisions binding each named tenant, or the predicates for posting-and-mailing service if that method required reasonable diligence. The lease and related documents appear to contain fewer signatures than the number of named defendants. The Court cannot infer from an admission about Pacheco's assault that each co-defendant is independently subject to forfeiture without resolving the governing statute, lease terms, and tenancy relationships. The Answer also raises provocation and self-defense; while unsupported allegations alone cannot defeat a properly supported motion, they identify potentially material issues requiring attention to the governing termination theory. The record does not establish these matters as a matter of law against every defendant.

JUDICIAL NOTICE AND FURTHER PROCEEDINGS

Plaintiff's request for judicial notice is **GRANTED** only as to the existence and contents of identified filings and orders in this action. The Court does not judicially notice the truth of contested factual statements in declarations or pleadings merely because they were filed. (Evid. Code, § 452, subd. (d).) Plaintiff may pursue trial or a properly supported subsequent motion, subject to applicable notice and scheduling rules. The purported waiver of fair rental value does not cure the failure to establish entitlement to possession. No separate statement is required for this summary proceeding. (Code Civ. Proc., §§ 437c, subd. (s), 1170.7.)

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

2:00 PM

LINE: 2

26-UDU-00738

26-UDU-00738

**GRAND PRIX FIXED LESSEE LLC, A DELAWARE LIMITED LIABILITY COMPANY
DENISE WEEKS**

**GRAND PRIX FIXED LESSEE LLC, A
DELAWARE LIMITED LIABILITY
COMPANY
DENISE WEEKS**

PLAINTIFF GRAND PRIX FIXED LESSEE LLC'S MOTION TO COMPEL THE DEPOSITION OF DEFENDANT DENISE WEEKS

TENTATIVE RULING:

The unopposed motion is **GRANTED**.

If the tentative ruling is uncontested, it shall become the order of the Court. The prevailing party shall prepare and submit a proposed order repeating the tentative ruling verbatim, consistent with San Mateo County Superior Court Local Rule 3.403(b)(iv), and give notice as required by law. (Cal. Rules of Court, rule 3.1312.)

Posted: 3:00 P.M.